

Ved Prakash And 4 Others v. State of U.P. And Another

Allahabad High Court · Division Bench · 16 March 2018 · Writ - C No. 9808 of 2018 · **Writ disposed of without opinion on merits; liberty to represent the disputed 04.03.2018 bills to the Executive Engineer under Clause 6.5 within two weeks; speaking and reasoned order within four weeks of receipt; no recovery or disconnection if up-to-date payment is claimed and is so**

HEADNOTE

Where consumers challenge a bill/notice and seek a mandamus against disconnection, contending that they hold power-loom connections payable under a Government Order and have paid bills up to February, and the licensee disputes that the connections were granted for power looms and points to Clause 6.5 of the Electricity Supply Code, 2005 as the forum for incorrect-bill disputes, the writ court will not quash the bill or decide the tariff dispute. Clause 6.5 supplies the machinery for disputed bills and arrears. Without expressing any opinion on the merits, the petition is disposed of with liberty to represent the disputed bills to the Executive Engineer, Electricity Distribution Division, Baghpat (identified as the competent authority) within two weeks; that officer is to decide the representation strictly in accordance with law by a speaking and reasoned order within four weeks of receipt. If the consumers claim that they have made up-to-date payment of their electricity dues, and that is so, neither recovery nor disconnection is to follow. The Court did not decide which Government Order applied, whether the connections were power-loom supplies, or the quantum of the 04.03.2018 demands.

FACTUAL SUMMARY

Ved Prakash and four others petitioned the Allahabad High Court to quash a bill/notice dated 4 March 2018 issued by the Executive Engineer, Electricity Distribution Division, Baghpat, and for a mandamus restraining disconnection. Their case was that they had obtained electricity connections for running power looms, were required to pay under Government Order No. 1969/24P-3-2006 dated 24 June 2006, and had paid bills up to February according to Government Order No. 387/P.C.L/C.U-3-2006 dated 20 June 2006. The 4 March 2018 notice demanded Rs. 21,35,311 from the first petitioner, Rs. 14,81,308 from the second, Rs. 19,45,398 from the third, Rs. 35,54,467 from the fourth and Rs. 8,23,702 from the fifth, and threatened disconnection.

Counsel for the Engineer disputed that the connections had been granted for power looms and invoked Clause 6.5 of the Electricity Supply Code, 2005 as the forum for disputes arising out of incorrect bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed consumption bill — representation to Executive Engineer; no writ quash; no recovery or disconnection if dues are up to date

QUESTION

Where consumers dispute the Government Order applied to consumption bills and seek to restrain disconnection, is the writ to be decided on merits, or are they to proceed under Clause 6.5?

HOLDING

The writ is disposed of without quashing the bills. Clause 6.5 of the Electricity Supply Code, 2005 is the forum for a dispute arising out of incorrect bills. On the licensee's submission that respondent no. 2 was the competent authority, and without expressing any opinion on the merits, the petitioners are given liberty to represent the disputed bills to the Executive Engineer, Electricity Distribution Division, Baghpat, within two weeks along with a certified copy of the order; if so moved, that officer shall decide the representation strictly in accordance with law by a speaking and reasoned order within a further four weeks of receipt. If the petitioners claim that they have made up-to-date payment of their electricity dues, and that is so, neither recovery shall be made nor their power disconnected. ¶ 5-9

QUALIFIER

The Court proceeded on the licensee's statement that respondent no. 2 was the Clause 6.5 competent authority, and did not decide whether the connections were power-loom supplies.

FLAG Unnumbered order; pins are sequential blocks after the cause-title: (1) hearing; (2) prayers; (3) power-loom case, competing Government Orders, and the 04.03.2018 demands; (4) licensee's dispute that the connections were for power looms and invocation of Clause 6.5; (5) finding of force in the alternative-remedy submission; (6) reproduction of Clause 6.5(a)–(d); (7) identification of respondent no. 2 as the competent authority; (8) disposal without opinion on merits; (9) no recovery or disconnection if up-to-date payment is claimed and is so. The Court styled the provision 'Section 6.5 of the Electricity Supply Code, 2005'. No precedent cited.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ to quash the 04.03.2018 bill/notice and restrain disconnection was not decided on merits. The consumers were sent to a time-bound Clause 6.5 representation before the Executive Engineer, with protection against recovery and disconnection if they claim, and it is so, that dues are paid up to date. ¶ 4-9

clause-6.5-statutory-remedy-disputed-bill The Court recited and reproduced Clause 6.5 as the Code forum when a consumer disputes an incorrect bill, including 6.5(a)–(d). ¶ 4-6

clause-6.5-representation-executive-engineer Liberty to represent the disputed bills to the Executive Engineer, Electricity Distribution Division, Baghpat (respondent no. 2) within two weeks; speaking and reasoned order strictly in accordance with law within four weeks of receipt. ¶ 7-8

bill-dispute-requiring-facts-relegated-to-competent-authority Whether the connections were granted for power looms, and which of the two Government Orders governed the tariff, were left to the Executive Engineer as the identified competent authority. ¶ 3-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER GOVERNMENT ORDER NO. 1969/24P-3-2006 DATED 24.06.2006 OR GOVERNMENT ORDER NO. 387/P.C.L/C.U-3-2006 DATED 20.06.2006 GOVERNED THE TARIFF, AND WHETHER THE PETITIONERS HAD PAID AS REQUIRED

The petitioners' principal challenge. Left to the Executive Engineer's speaking order on the Clause 6.5 representation. The Court expressed no opinion on the merits. ¶ 3, 8

NOT DECIDED — WHETHER THE PETITIONERS' CONNECTIONS HAD BEEN GRANTED FOR RUNNING POWER LOOMS

Disputed by counsel for respondent no. 2. Not decided. ¶ 3-4

NOT DECIDED — VALIDITY AND QUANTUM OF THE BILL/NOTICE DATED 04.03.2018 (RS. 21,35,311; RS. 14,81,308; RS. 19,45,398; RS. 35,54,467; RS. 8,23,702)

Not quashed. Left to the Clause 6.5 representation. ¶ 2-3, 8

NOT DECIDED — WHETHER THE 04.03.2018 DEMANDS VIOLATED ARTICLE 14

Raised by the petitioners. Not examined. ¶ 3